

Data Processing Addendum

Full Text Demonstration Agreement

Party A	Siemens Smart Infrastructure AG
Party B	Harbor Cloud Processing Inc.
Effective Date	5 June 2026
Governing Law	laws of Ireland
Venue	courts of Dublin, Ireland
Primary Subject	processing of personal data in connection with hosted building-management services
Risk Focus	GDPR Article 28 duties, international transfers, subprocessor approvals, and breach notice timing

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Article 1. Definitions and Interpretation

Commercial purpose. The parties enter this Article to allocate responsibility for processing of personal data in connection with hosted building-management services. The obligations below are intended to be operationally testable and not merely aspirational. Each party shall maintain records sufficient to show compliance, and neither party may treat silence in an order form, statement of work, or schedule as permission to reduce the protections stated in this Agreement.

Core obligations. Harbor Cloud Processing Inc. shall provide, manage, and document processor commitments, subprocessor notices, transfer assessments, breach support, and deletion certificates. Siemens Smart Infrastructure AG shall provide timely decisions, access to reasonably necessary stakeholders, and accurate instructions. Where a dependency is not satisfied, the affected party shall give written notice identifying the dependency, the consequence for timing or cost, and the mitigation steps available without expanding the original scope.

Control language. Any ambiguity in this Article shall be resolved in favor of preserving GDPR Article 28 duties, international transfers, subprocessor approvals, and breach notice timing. A waiver must be express, written, and signed by an authorized representative. A course of dealing, delayed objection, acceptance of partial performance, or payment of an invoice does not waive future enforcement or modify the standard of care.

- a. The parties shall maintain a decision log for matters that affect GDPR Article 28 duties, international transfers, subprocessor approvals, and breach notice timing. The log must identify the requester, approver, date, evidence reviewed, residual risk, and any follow-up obligation.
- b. Records involving tenant contact details, device identifiers, access logs, building telemetry linked to persons, and support metadata must be segregated from general project material, retained only for the approved retention period, and made available for audit where the Agreement grants audit rights.
- c. Personnel performing material obligations must be qualified for the role assigned. Replacement personnel must receive transition briefings and may not reduce continuity for critical services, milestones, or regulated deliverables.
- d. Each party shall notify the other promptly after discovering facts that could reasonably affect performance, security, compliance, financial exposure, or the enforceability of this Agreement.

Escalation and remedy. If a dispute arises under this Article, the parties shall first escalate to project leads, then to legal and commercial executives. The parties shall continue undisputed performance while the dispute is pending. Equitable relief remains available for confidentiality, data protection, intellectual property, security, and non-use obligations.

Article 2. Scope of Work and Ordering Mechanics

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Signature Blocks

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By: _____

By: _____

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

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